

Perspectives: An Open Invitation to Cultural Anthropology 26 Citing the Montevideo Convention of Rights and Duties of States held in 1933, Atwan contends that there are two types of states: declaratory and constitutive. A declaratory entity has a clearly defined territory, a permanent population, and a government capable of controlling the population, its territory, and its resources, and it is recognized by other states. A constitutive state has the same attributes but is not necessarily recognized by other states. ISIS is more like a constitutive state since it is not recognized by any other states.⁷⁹ Napoleoni added the concept of a shell state, which she defined as an "armed organization [that] assembles the socio-economic infrastructure" such as taxation and employment services among others of a state "without the political one. i.e., no territory, no self-determination."⁸⁰

Administrative Apparatus and Functions The best way to understand ISIS as a formative state is to analyze its administrative apparatus and the functions of its subdivisions. As Atwan and Nance point out, ISIS is highly centralized with the caliph—Abu Bakr al-Baghdadi, also known as Ibrahim—as representative and, arguably, a descendant of the prophet Muhammad and so constitutes the ultimate authority of the state.⁸¹ However, ISIS's organization is such that if he or any other authority is killed in war, other trained individuals can readily take his place. There are two deputies in each of two senior positions, and they make the final decisions concerning the affairs of ISIS. Reports of the killing of ISIS senior staff members have tended to overlook this arrangement.⁸² Decisions are carried out by lower-level deputies in the administration who are allowed discretion in how those orders are implemented, allowing officials to use local knowledge to best execute the directives. These attributes—ready replacement of staff and local decision-making power—provide flexibility to the centralized administrative structure associated with ISIS.⁸³ Baghdadi and his deputies rely on various councils and department committees that form their "cabinet." The top level of administration also has a powerful Shura (consultative) council that endorses the Sharia (religious legal) council's choice of caliph and then provides advice to him. The Shura council oversees the affairs of state, manages communication, and issues orders to the chain of command and ensures that they are implemented. The twelve-member Shura council is made up of members selected by Baghdadi and is headed by one of the senior deputies.⁸⁴ The Sharia council is charged with formulating regulations and administrative routines consistent with law as spelled out in the Qu'ran and with selecting the caliphs, who are endorsed by the Shura council. It also oversees all matters related to the administration as a whole and manages the judicial affairs of the body politic. Although the Western press has emphasized the more draconian penalties categorized as hudud such as amputations for theft and capital punishment by beheadings and crucifixion, ISIS's legal system also allows judges to impose less-severe tazeer punishments designed to publicly shame a miscreant with the aim of reform and rehabilitation. How frequently these two types of enforcement are used is a statistical question that would require a survey that simply cannot be conducted at this time.⁸⁵

What is the relationship of the top administrators and their councils to the regional and local administrative bodies? The story begins with incorporation of those bodies into the state. When a city, town, or administrative unit is first occupied by ISIS forces, the first order of business in addition to maintaining the existing police force is to establish a Sharia police force that aims to work toward the "purity" of the Islamic State. Thus, women are enjoined to wear black robes and to veil and men are likewise ordered to wear modest clothing. The "moral police" are dispatched to ensure acceptable